



## **DISTRICT SAFETY COMMITTEE**

**Legal Reference:** California Code of Regulations, Title 8, Section 3203

**PURPOSE:** The purpose of this guidance document is to assist member school districts in setting up and maintaining an effective district safety committee.

**INTRODUCTION:** The purpose of a safety committee is to bring workers and managers together in a cooperative effort to promote safety in the workplace. The committee assists the employer and makes recommendations for change regarding occupational safety issues. It is easy to start a safety committee, but developing an effective one (one that achieves and maintains a safe workplace) requires workers and managers who are committed to achieving that goal.

**Legal Requirement:** Employers who elect to use a labor/management safety committee to comply with the communication requirements of Section 3203 (a)(3), shall include a system for communicating with employees in a form readily understandable by all affected employees on matters relating to occupational safety, including provisions designed to encourage employees to inform the employer of hazards at the worksite without fear of reprisal. Substantial compliance with this provision includes meetings, training programs, posting, written communications, a system of anonymous notification by employees about hazards, labor/management safety committees, or any other means that ensures communication with employees. You are presumed to be in substantial compliance with subsection (a)(3) if the committee:

1. Meets regularly, but not less than quarterly;
2. Prepares and makes available to the affected employees, written records of the safety issues discussed at the committee meetings and, maintained for review by the Cal/OSOGA upon request. The committee meeting records shall be maintained for at least three years;
3. Reviews results of the periodic, scheduled worksite inspections;

4. Reviews investigations of occupational accidents and causes of incidents resulting in occupational injury, occupational illness, or exposure to hazardous substances and, where appropriate, submits suggestions to management for the prevention of future incidents'
5. Reviews investigations of alleged hazardous conditions brought to the attention of any committee member. When determined necessary by the committee, the committee may conduct its own inspection and investigation to assist in remedial solutions' and
6. Submits recommendations to assist in the evaluation of employee safety suggestions.

**COMMITTEE MEMBERS** - Title 8 does not specify who could serve on your safety committee. However, organizations that use safety committees seem to have the greatest success with committees made up of equal numbers of employee and management representatives and have a chairperson elected by the representatives. A committee of six to eight people for a medium to large school district will generally be large enough to allow for designation of particular duties to members, but not so big as to make it difficult to conduct meetings and coordinate members' activities. Other matters to consider about whom will serve on the committee:

- Employee representatives can volunteer to serve on the committee or their peers can elect them. If your collective bargaining agreement has procedures for selecting representatives, follow those procedures
- Employer representatives represent the employer. You can have more employee representatives on the committee than employer representatives (management) if no one objects. You can choose any employee to serve as a representative.
- Representatives' jobs should reflect the district's major departments and or job classifications such as instruction, workers' compensation, business services and human relations.
- Representatives must be paid their regular wages for safety committee meetings and safety-related training sessions.
- Each representative should serve at least one year on the committee.

Your safety committee must have a chairperson and someone to take minutes at each meeting. The committee doesn't have to have a vice-chair; however, someone should be available to prepare an agenda and conduct committee business

in the chair's absence. The following table summarizes the duties of the chairperson, vice-chair, recorder, and other committee representatives.

#### Chairperson

- Schedules monthly meetings
- Develops agendas for meetings
- Conducts monthly meetings

#### Vice-Chair

- Assumes chair's duties when the chair is absent
- Coordinates training for new representatives
- Performs other duties assigned by the chair

#### Recorder

- Takes minutes at each meeting
- Distributes copies of minutes to representatives
- Posts minutes for other employees to review
- Maintains the safety-committee file
- Keeps minutes and agendas on file for three years

#### Other committee representatives

- Report employees' safety concerns to the committee
- Report accidents, near miss incidents, and unsafe workplace conditions to the committee
- Report back to employees on their suggestions, concerns, reports
- Suggest items to include in the monthly meeting agenda
- Encourage employees to report workplace hazards and suggest how to control them
- Establish procedures for conducting workplace inspections and for making recommendations to management to eliminate or control hazards
- Help management evaluate the district
- S safety program and recommend how to improve it
- Establish procedures for investigating the causes of accidents and near-miss incidents
- Assist in communicating committee activities to all employees

- Set example by working safely
- Other duties as assigned by the chair

**COMMITTEE GOALS** – The purpose of the safety committee is to bring workers and managers together in a cooperative effort to promote safety in the workplace. But you'll need to narrow the focus, set goals, and specify what the committee will do. Start with a few written paragraphs that states why the committee was established and what it intends to accomplish.

**MEETING PROCEDURES** – Committees are only as effective as their meetings, so running a successful meeting should be taken seriously and it should be a priority. Meetings can be formal or informal, but typically opting for the middle ground is satisfactory. Some districts are required to conduct all committee meetings following Robert's Rules of Orders if it is considered a public meeting.

#### Require Participation

Set a regular schedule for the meetings. Make sure each representative gets a copy of the schedule and copy is posted at each worksite. Each representative must help the committee accomplish its goals.

Agenda and Minutes The agenda outlines the meeting's discussion topics. The chairperson should understand the agenda topics and keep discussion focused on them. Send copies of the agenda to representatives a few days before the meeting so they can review it and suggest changes or additions. Accurate meeting minutes are important because they document the committee's accomplishments. The representative who has this responsibility should be able to grasp the main points of a discussion and record them quickly.

Meeting minutes should include the following:

- A brief summary of the discussion of each topic
- A copy of committee reports, evaluations, and recommendations
- A copy of management's response to committee recommendations

***Remember to send a copy of the minutes to each representative promptly after the meeting and to post a copy at each worksite on the safety bulletin board where other employees can see it. Keep a copy of each meeting's minutes on file for three years.***

**COMMITTEE MEETING ACTIVITIES AND TOPICS** – A committee meeting gives you the opportunity to discuss with your employee representatives the general matters about which you must consult your workforce.

To ensure you cover all relevant issues, the committee should have some standing items for the agenda and allow for other items to be added as necessary. Standing items are required by Cal/OSHA such as:

- Statement of Purpose and Objectives – Does not have to be on every agenda, but it's a good idea to help keep members focused
- Attendance – Document who was in attendance
- Employee Accidents – Review investigations of occupational accidents (and near-hits) and causes of incidents resulting in occupational injury, occupational illness, or exposure to substances and, where appropriate, submits suggestions to management for the prevention of future incidents
- Workers' Compensation – Review statistics and claim costs (do not use employee names)
- Safety Concerns and Suggestions – Review and discuss safety suggestions and/or concerns from sites, committee members, employees, and/or anonymous
- Safety Training – Review and discuss safety related inspection activities within the district
- Incentive Awards – Discuss and award as necessary. In order for an incentive program to work, the incentive has to be of value to the person receiving it. Employees on your safety committee can provide insight into what motivates your workers and what incentives they might find valuable—and, often, those incentives cost are less than anything you would have thought of on your own!
- Safety Budget – Review and discuss account balance(s), list expenditures in minutes, approve expenditures, etc.
- Date – Document future meeting date(s)
- Other – Student accidents, drills, emergency preparedness, etc.

If the safety committee is discussing accidents, the aim is to stop them happening again, not to give blame. Committees should:

- Look at the facts in an impartial way
- Consider what precautions might be taken

- Recommend appropriate actions
- Monitor progress with implementing the safety interventions

Only the planning and effective leadership of management and the safety committee can build a program that lasts. The safety committee should be an effective problem-solving team, providing guidance and leadership in safety matters.